Financial Data Protection Rules and Sensitive Information List

Finaira Privacy Gateway project, October 2026

How to use this document

This document collects the legal rules that decide which information in financial documents must be protected before any document is processed outside the organization. It is written for everyone on the project, technical or not.

It has five parts:

1. **The rules.** Each law, what it says, and what it means in practice.
2. **Where each law applies.** Which law covers which kind of organization.
3. **Priority levels.** How the information list is ranked.
4. **The information list.** Every type of information we must handle, with its priority and the law it comes from.
5. **References.** The sources used.

If you only need to know what to hide, go straight to Part 4. Every item there shows its priority level and the law and article behind it.

A note on the texts. The Egyptian laws are quoted from published English translations. The Arabic text in the Official Gazette is the binding version. Anything that a design decision depends on should be confirmed with the organization's legal or compliance team.

Part 1. The rules

1.1 Central Bank and Banking Sector Law No. 194 of 2020 (Egypt)

This is the main law for banks in Egypt. Its confidentiality chapter is the strictest rule we deal with.

Rule	What it says	What it means for us
Article 140, secrecy of customer data	All customer data, accounts, deposits, items held in safekeeping and transactions are confidential. They may only be disclosed with the written consent of the customer or their legal representative, or by a court or arbitration ruling. The duty applies to everyone and continues after the customer leaves the bank.	Secrecy covers far more than names and ID numbers. Balances, amounts, transaction details and the people on the other side of a transaction are all protected, even when no name appears in the text. It also covers company customers, not only individuals.
Article 141, criminal investigations	The Public Prosecutor, or a senior prosecutor he delegates, may ask the Cairo Court of Appeal to allow disclosure in serious criminal investigations. The people affected must be told within three days. This also applies to money laundering and terrorism financing cases.	Only a court can lift secrecy. Government bodies, police and tax inspectors cannot demand account data on their own.
Article 142, duty of employees	Anyone who learns customer information through their job may not disclose it, even after leaving the job.	This covers bank staff and anyone working with bank data, including contractors and project teams.

Rule	What it says	What it means for us
Article 143, permitted exceptions	Secrecy does not block certain uses. These include the work of auditors and the Central Bank, anti money laundering rules, credit bureau reporting, legal action between the bank and the customer, due diligence in mergers, whistleblowing, and access by outsourcing service providers to customer data that they need to perform the services delegated to them.	A service provider may see customer data only as far as the delegated service needs it. Anything beyond that need is a breach.
Article 96, registered service providers	The Central Bank sets registration requirements for important outsourced and technology providers, including data confidentiality standards. Banks may not use unregistered providers and remain fully responsible for outsourced work.	Sending readable customer data to an external service that is not registered with the Central Bank is a likely breach of Articles 96 and 140. Removing customer data before it leaves the bank avoids this problem.
Article 231, penalty for disclosure	Breaking Article 140 or 142 is punished by imprisonment of at least one year and a fine of EGP 200,000 to 500,000, or either penalty. The fine is multiplied by the number of people harmed.	One leaked file with many customers multiplies the fine.
Article 232, penalty for employees	An employee who discloses confidential information learned through their position faces up to two years in prison and a fine of EGP 50,000 to 100,000, or either penalty, also multiplied by the number of people harmed.	Individual staff carry personal criminal liability.

1.2 Personal Data Protection Law No. 151 of 2020 (Egypt) and its Executive Regulations

This is Egypt's general data protection law. It covers personal data processed electronically, in full or in part.

Rule	What it says	What it means for us
Issuing Law, Article 1	The law applies to personal data processed electronically.	Our project processes documents electronically, so the law applies wherever the organization is covered.
Issuing Law, Article 2	The law applies to violations involving data of Egyptians, or of foreigners living in Egypt, including when committed abroad.	Sending data to a server abroad does not escape the law.
Issuing Law, Article 3, item 6	The law does not apply to data held by the Central Bank of Egypt and the entities it supervises. Money transfer companies and currency exchange companies are excluded from this exemption. The exemption holds only if the Central Bank's own rules on personal data are followed.	Banks follow Law 194 and Central Bank rules instead. Nonbank financial companies follow Law 151 (see Part 2).
Article 1, personal data	Any data about a natural person who is identified, or can be identified directly or indirectly by linking it with other data. Examples given are name, voice, picture, identification number, online identifier, and data showing a person's psychological, medical, economic, cultural or social identity.	Indirect details count as well. A birth date, an employer and a job title together can identify a person.

Rule	What it says	What it means for us
Article 1, sensitive personal data	Data revealing psychological, mental or physical health; genetic, biometric or financial data; religious beliefs; political views; criminal records. Data about children is always sensitive.	Financial data is sensitive by law. Almost every financial document therefore contains sensitive data.
Article 4, duties of the controller	Data must be collected with consent or another legal basis and used only for a defined purpose. It must be deleted when the purpose ends. If it is kept, it must be kept in a form that does not allow the person to be identified. Technical measures must protect its confidentiality.	Keeping data in a form that cannot identify the person is exactly what our gateway does before data leaves the organization.
Article 8, data protection officer	Every company that controls or processes personal data must appoint a data protection officer and register them with the Data Protection Centre.	Any client organization will have a data protection officer, who is a natural reviewer for the project.
Article 12, sensitive data	Collecting, storing, transferring or processing sensitive data requires a licence from the Data Protection Centre and the explicit written consent of the person. For children, the guardian must consent.	Sensitive data is the highest risk category under this law.
Article 14, transfer abroad	Personal data may be transferred, stored or shared abroad only if the destination country protects data at least as well as Egyptian law, and only with a licence or permit from the Data Protection Centre.	Sending readable personal data to a cloud service hosted abroad needs a licence.
Article 15, exceptions	With the explicit consent of the person, transfer without that level of protection is allowed in seven cases only: to protect life or provide medical care; to prove or defend a right in court; to make or perform a contract for the person's benefit; international judicial cooperation; legal necessity or public interest; transferring money to another country; or an international agreement Egypt has joined.	None of these cases covers routine document processing with a cloud language model.
Article 16, disclosure to foreign parties	Disclosing personal data to a controller or processor outside Egypt requires a licence and an equal level of protection.	Same conclusion as Article 14.
Article 36, unlawful processing	Fine of EGP 100,000 to 1,000,000. If done for a benefit or to harm the person: at least six months in prison and/or a fine of EGP 200,000 to 2,000,000.	
Article 41, sensitive data	Handling sensitive data without consent or legal permission: at least three months in prison and/or a fine of EGP 500,000 to 5,000,000.	This is the highest fine band in the law, and financial data falls in it.
Article 42, transfer abroad	Breaking the rules on transfer abroad: at least three months in prison and/or a fine of EGP 500,000 to 5,000,000.	
Articles 45, 47 and 48	Licence violations are fined EGP 500,000 to 5,000,000. A manager who knew about a violation faces the same penalties. Penalties double for repeat offences.	

Rule	What it says	What it means for us
Executive Regulations, Minister of Communications Decision No. 81 of 2025	In force since 2 November 2025. Organizations have one year to comply, until about 31 October 2026. Licences or permits are needed for sensitive data and transfers abroad. A breach must be reported to the Data Protection Centre within 72 hours, and to the person within three working days after that. Stored data must be kept in an unreadable form. A foreign processor without an office in Egypt must appoint a representative in Egypt.	The compliance deadline is close, which makes this project timely. The regulations do not say whether anonymized or pseudonymized data falls outside the law, so it should be treated as still covered.

1.3 Financial Regulatory Authority decrees (Egypt, nonbank financial services)

Rule	What it says	What it means for us
Decree No. 140 of 2023	Issued under the Financial Technology Law No. 5 of 2022. Sets the rules for digital identity, digital contracts and customer authentication, using knowledge, possession and live presence factors, including a live photo of the identity document and a selfie with liveness checks.	Nonbank firms collect biometric data and identity document images during onboarding. Both are sensitive.
Decree No. 186 of 2024, amended by Decrees No. 30 of 2025 and No. 133 of 2026	Requires nonbank financial firms to verify customer data at contracting, including linking the mobile number to the customer through the telecom regulator. Decree 133 of 2026 adds a one time code sent to the verified mobile at contracting and when the financing is used, and requires keeping records of it.	Mobile numbers are verified identity data in this sector, and verification records are themselves personal data.

1.4 Other jurisdictions (for reference)

Jurisdiction	Main rules	What they say about data leaving the country	Status of masked or pseudonymized data
Saudi Arabia	Personal Data Protection Law; Regulation on Personal Data Transfer Outside the Kingdom (in force 1 September 2024); Saudi Central Bank rules on cloud and outsourcing	Transfer abroad is allowed with safeguards such as approved contract clauses. Financial institutions need Saudi Central Bank approval for cloud services, and explicit approval for cloud services outside the Kingdom.	Still personal data. Masking is a safeguard, not an exemption.
United Arab Emirates	Federal Decree Law No. 45 of 2021; Central Bank Consumer Protection Regulation; Central Bank guidance note on responsible use of artificial intelligence (23 February 2026)	Customer data may not be shared with third parties without consent. Institutions remain responsible for data sent to outside technology providers.	Still regulated.

Jurisdiction	Main rules	What they say about data leaving the country	Status of masked or pseudonymized data
European Union (benchmark)	General Data Protection Regulation, Recital 26 and Article 4(5); European Data Protection Board Recommendations 01/2020 and Guidelines 01/2025 on pseudonymisation; Court of Justice judgment C 413/23 P of 4 September 2025	Transfers outside Europe need an adequacy decision, approved contract clauses or binding corporate rules.	Pseudonymized data is personal data for the organization holding the key. It is an accepted extra safeguard for transfers when the receiver cannot obtain the key. The 2025 judgment held that for a receiver who cannot reasonably reidentify anyone, the data may not be personal data at all.

1.5 What the rules mean together

1. **Readable customer data should not reach an external service.** Under Law 194 this applies to any provider not registered with the Central Bank. Under Law 151 it applies to any service abroad without a licence.
2. **Banking secrecy is wider than personal data.** It protects accounts, balances and transactions of all customers, including companies.
3. **Financial data is sensitive data** under Law 151 and carries the highest penalties.
4. **The key that restores hidden values must stay inside the organization.** This keeps the external service from identifying anyone, which is what the European guidance and the 2025 judgment rely on, and it matches Article 4 of Law 151.
5. **Whether masked text still counts as customer data under Article 140 is not settled** by any Egyptian text. Each client organization's compliance team must decide this.

Part 2. Where each law applies

Type of organization	Law that applies	Notes
Banks supervised by the Central Bank of Egypt	Law 194 and Central Bank rules	Exempt from Law 151 (Issuing Law, Article 3, item 6), on condition that Central Bank data rules are followed.
Payment service providers and payment system operators licensed by the Central Bank	Law 194 (Articles 185 to 196) and Central Bank rules	Supervised by the Central Bank, so most likely covered by the same exemption.
Money transfer companies and currency exchange companies	Law 151, plus Central Bank rules	Expressly excluded from the bank exemption.
Consumer finance, microfinance, leasing, mortgage finance, insurance and nonbank fintech companies	Law 151 and Financial Regulatory Authority decrees	Supervised by the Financial Regulatory Authority, not the Central Bank.
Any other company processing data of people in Egypt electronically	Law 151	Includes service providers working for the companies above.
Organizations serving customers in Saudi Arabia, the United Arab Emirates or Europe	The local rules in Part 1.4	Apply in addition to Egyptian law where relevant.

Part 3. Priority levels

Level	Meaning	Handling
P0	Protected by banking secrecy, or a direct identifier, or sensitive data under Law 151.	Must never leave the organization in readable form, under any setting.
P1	Personal data that identifies a person when combined with one or two other details.	Hidden by default. A policy may allow a general form instead, for example an age range instead of a birth date.
P2	Details that identify a person only when combined with several others.	Hidden when the rest of the document makes the person identifiable.
Keep	Not personal data and not covered by banking secrecy.	Left visible so the document stays useful.

Part 4. The information list

4.1 Direct identifiers

Information	Priority	Law and article	Notes
Full name in Arabic	P0	Law 151, Article 1; Law 194, Article 140	Arabic names usually have three to five parts.
Full name in Latin letters	P0	Law 151, Article 1; Law 194, Article 140	The same person may be spelled several ways, for example Mohamed, Mohammed or Mohamad.
National ID number (14 digits)	P0	Law 151, Article 1 (identification number)	The number contains the birth date, the governorate and the gender, so even part of it reveals personal details.
Passport number and foreign ID numbers	P0	Law 151, Article 1	Includes residence permits and national IDs of other countries.
Mobile and landline numbers	P0	Law 151, Article 1; Financial Regulatory Authority Decree 186 of 2024	Verified mobile numbers are identity data in nonbank finance.
Email address	P0	Law 151, Article 1 (online identifier)	
Home and mailing address	P0	Law 151, Article 1	
Online identifiers, device identifiers, IP addresses	P0	Law 151, Article 1	
Photo, voice recording, signature image	P0	Law 151, Article 1 (voice, picture)	
Fingerprint, face template, liveness data	P0	Law 151, Articles 1 and 12 (biometric, sensitive); Financial Regulatory Authority Decree 140 of 2023	
Digital wallet number	P0	Law 151, Article 1; Law 194, Article 140	Usually the mobile number.

4.2 Banking secrecy information

Information	Priority	Law and article	Notes
Account number, customer number (CIF), loan account number	P0	Law 194, Article 140	Applies to company accounts as well as personal ones.
IBAN	P0	Law 194, Article 140	
Card number	P0	Law 194, Article 140	Partly masked numbers still count.
Balances and deposit amounts	P0	Law 194, Article 140; Law 151, Article 1 (financial data)	
Transaction amounts, dates, descriptions and references	P0	Law 194, Article 140	Amounts written in words must be treated the same as amounts written in digits.
Beneficiary and counterparty names, accounts and banks	P0	Law 194, Article 140	The other party in a transaction is protected too.
Loan amounts, instalments, credit limits, terms	P0	Law 194, Article 140; Law 151, Article 1 (financial data)	
Certificate, deposit and investment numbers and values	P0	Law 194, Article 140	
Items in safekeeping and custody	P0	Law 194, Article 140	
Collateral and guarantees linked to a customer	P0	Law 194, Article 140	
Declared account purpose and expected activity	P0	Law 194, Article 140	

4.3 Sensitive personal data

Information	Priority	Law and article	Notes
Income, salary, sources of income and wealth, debts, credit history	P0	Law 151, Articles 1, 12 and 41 (financial data)	
Health information, including disability status	P0	Law 151, Articles 1, 12 and 41	
Genetic data	P0	Law 151, Articles 1, 12 and 41	
Biometric data	P0	Law 151, Articles 1, 12 and 41	See also 4.1.
Religious beliefs, including where they can be inferred, for example from a religion field or a choice of religious products	P0	Law 151, Articles 1, 12 and 41	
Political views	P0	Law 151, Articles 1, 12 and 41	
Criminal and judicial records	P0	Law 151, Articles 1, 12 and 41	
Any data about a child	P0	Law 151, Articles 1 and 12	Minors' accounts and guardian details.

4.4 Indirect identifiers

Information	Priority	Law and article	Notes
People linked to the customer: joint holders, guarantors, agents, beneficial owners, heirs	P0	Law 151, Article 1; Law 194, Article 140	Their own identifiers are direct identifiers.
Date of birth	P1	Law 151, Article 1	Also contained in the national ID number.
Place and country of birth	P1	Law 151, Article 1	
ID issue date, expiry date and issuing office	P1	Law 151, Article 1	
Employer name, employer address and phone, job title, start date	P1	Law 151, Article 1	An employer and a job title together often identify a person.
Names of bank staff on documents	P1	Law 151, Article 1	Employees are data subjects too.
Politically exposed person status	P1	Law 151, Article 1	A public role, not an opinion, but closely linked to political data.
Gender	P2	Law 151, Article 1	Also contained in the national ID number.
Nationality and other nationalities	P2	Law 151, Article 1	
Marital status, education, type of housing	P2	Law 151, Article 1	
Branch name together with a request or reference number and a date	P2	Law 194, Article 140	Together they point to one customer record.

4.5 Information that can stay visible

Information	Priority	Reason
Names of banks and other institutions	Keep	Not personal data (Law 151 covers natural persons only).
Product and service names	Keep	Not personal data.
Published fees, rates and limits	Keep	Public information.
Standard contract clauses and legal text	Keep	No personal data.
Currency codes and field labels	Keep	No personal data.
Bank branch addresses and public hotline numbers	Keep	Public information about the institution.

Part 5. References

Egyptian law texts

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